SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 450 of 2021 (YEAR: 2021)

CORAM: N.V. RAMANA, SURYA KANT, ANIRUDDHA BOSE

Union of India
... Appellant(s) / Petitioner(s)
Versus
K.A. Najeeb
... Respondent(s)

Acts Referred:	Unlawful Activities (Prevention) Act, 1967, Constitution of India
Sections:	Section 43D(5) UAPA, Article 21

JUDICIAL HEADNOTE & SUMMARY

Held that statutory bars on bail in special penal statutes (UAPA/NDPS) do not curtail the constitutional powers of High Courts and the Supreme Court under Article 21 where trial is protracted.

RATIO DECIDENDI

The Court held that: Held that statutory bars on bail in special penal statutes (UAPA/NDPS) do not curtail the constitutional powers of High Courts and the Supreme Court under Article 21 where trial is protracted. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Union of India v. K.A. Najeeb (Criminal Appeal No. 450 of 2021) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Unlawful Activities (Prevention) Act, 1967, Constitution of India, particularly Section 43D(5) UAPA, Article 21. Held that statutory bars on bail in special penal statutes (UAPA/NDPS) do not curtail the constitutional powers of High Courts and the Supreme Court under Article 21 where trial is protracted.

OPERATIVE ORDER

ORDER: Decided